AGREEMENT AND PLAN OF MERGER

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DATED AS OF SEPTEMBER 28, 2026

BY AND AMONG **APEX GLOBAL HOLDINGS INC.** ("Buyer"), **BRIGHTWATER MERGER SUB INC.** ("Merger Sub"), AND **BRIGHTWATER CORP.** ("Company")

PREAMBLE & RECITALS [CHUNK: CHK-M331-RECITALS]

THIS AGREEMENT AND PLAN OF MERGER (this "Agreement"), dated as of September 28, 2026, is entered into by and among APEX GLOBAL HOLDINGS INC., a Delaware corporation ("Buyer"), BRIGHTWATER MERGER SUB INC. ("Merger Sub"), and BRIGHTWATER CORP., a Delaware semiconductor corporation (the "Company"). Aggregate Enterprise Value is fixed at Two Billion Four Hundred Million Dollars ($2,400,000,000.00), subject to Section 2.04 Escrow Deposit and Working Capital adjustments.

ARTICLE I: DEFINITIONS & MATERIAL ADVERSE EFFECT [CHUNK: CL-M331-MAE]

Section 1.01 & 7.02(c). Company Material Adverse Effect. "Company Material Adverse Effect" means any change, event, or occurrence that has a material adverse effect on the business, results of operations, or financial condition of the Company and its Subsidiaries, taken as a whole; provided, however, that none of the following shall constitute a Company Material Adverse Effect: (i) changes in GAAP or Delaware law, (ii) industry-wide semiconductor supply constraints, except to the extent such changes disproportionately impact the Company by more than 15% of Consolidated Adjusted EBITDA compared to peer companies.

ARTICLE VIII: SURVIVAL AND INDEMNIFICATION [CHUNK: CL-M331-INDEM]

> **Section 8.02(b) & 8.04. Cap, True Deductible Basket & Double Materiality Scrape.** Notwithstanding anything to the contrary set forth herein, Seller shall have no liability under Section 8.02(a) until the aggregate amount of all Losses exceeds $12,000,000 (0.50% of Enterprise Value) (the "Deductible Basket"), after which Seller shall be liable only for Losses in excess of the Deductible Basket up to an aggregate Indemnity Cap equal to $18,000,000 (0.75% of Enterprise Value). For purposes of both determining breach and calculating Losses, all "Material Adverse Effect" and "material" qualifications shall be disregarded (Full Double Materiality Scrape).

SECTION 8.01: SURVIVAL PERIODS [CHUNK: CHK-M331-SURVIVAL]

Section 8.01. Survival. Non-Fundamental Representations shall survive the Closing for eighteen (18) months. Fundamental Representations (Organization, Authority, Capitalization, Taxes) shall survive for seventy-two

(72) months. Claims grounded in Intentional Fraud bypass both the Deductible Basket and the General Indemnity Cap up to 100% of Enterprise Value ($2,400,000,000).

ARTICLE XI: GOVERNING LAW & CHANGE OF CONTROL [CHUNK: CHK-M331-GOVLAW]

Section 11.06 & 11.08. Change of Control Assignment & Delaware Chancery Forum. Neither party may assign this Agreement or undergo a Change of Control prior to Closing without prior written consent of the other party. This Agreement shall be governed by the internal laws of the State of Delaware, with exclusive jurisdiction in the Court of Chancery of the State of Delaware.